

HOSTING SERVICES AGREEMENT

between PeakServers Hosting ("Vendor") and Customer Corp. ("Customer")
Effective Date: May 1, 2023

1. SERVICES

1.1 Vendor shall provision and maintain dedicated server infrastructure for Customer's production workloads.

2. TERM AND RENEWAL

2.1 This Agreement shall automatically renew for successive one-year terms unless either party provides written notice of non-renewal at least sixty (60) days prior to the end of the then-current term.

3. CUSTOMER OBLIGATIONS

3.1 Customer shall notify Vendor of any change in provisioned server count within five (5) business days.

4. SERVICE LEVELS

4.1 Vendor shall maintain 99.95% uptime for all provisioned servers, measured monthly.

5. FEES AND PAYMENT

5.1 Customer shall pay \$40.00 per provisioned server per month.

5.2 Customer shall pay a monthly platform base fee of \$500.00.

5.3 Customer shall receive a permanent five percent (5%) volume discount off recurring fees.

5.4 Mid-cycle server count changes shall be prorated daily.

6. LIMITATION OF LIABILITY

6.1 Neither party's aggregate liability under this Agreement shall exceed the fees paid by Customer in the twelve (12) months preceding the claim.

7. GOVERNING LAW

7.1 This Agreement is governed by the laws of the State of Washington.